

automatically continue to be due and payable in the same amount and frequency unless and until the notice specifically provides that the periodic payments will terminate or change upon the occurrence of a specified event or date or the payment of a specified amount, or the ASSOCIATION notifies the OWNER in writing of a change in the amount and/or frequency of the periodic payments. In no event shall any ASSESSMENTS for COMMON EXPENSES be due less than ten (10) days from the date of the notification of such ASSESSMENTS.

8.07 Until such time as DECLARANT no longer owns any UNIT, or, notwithstanding the provisions of Paragraph 8.02 of this DECLARATION, until DECLARANT notifies the ASSOCIATION in writing that DECLARANT elects to pay ASSESSMENTS for COMMON EXPENSES equally as in the case of any other OWNER, whether or not a UNIT owned by DECLARANT contains a HOME, DECLARANT shall not be liable for ASSESSMENTS for COMMON EXPENSES for any UNITS owned by DECLARANT, but in lieu thereof, DECLARANT shall be responsible for all COMMON EXPENSES in excess of the ASSESSMENTS for COMMON EXPENSES receivable from the other OWNERS, including amounts payable to the working capital fund. The obligation of DECLARANT to pay the excess COMMON EXPENSES of the ASSOCIATION shall be deemed an ASSESSMENT, and if DECLARANT fails to pay same the ASSOCIATION may record a claim of lien for such ASSESSMENT against all of the SUBJECT PROPERTY owned by DECLARANT, and may foreclose same, all as provided in Paragraph 11.01.03 and 11.01.04 of this DECLARATION.

9. USE RESTRICTION

9.01 HOMES Only one HOME may be constructed on any UNIT.

9.02 No Trade or Business No trade, business, profession, or commercial activity, or any other nonresidential use, shall be conducted upon any portion of the SUBJECT PROPERTY or within any UNIT or HOME.

9.03 Leasing All leases of a HOME must be in writing and specifically be subject to this DECLARATION, the ARTICLES and the BYLAWS, and copies delivered to the ASSOCIATION prior to occupancy by the tenant(s). Without the prior written consent of the ASSOCIATION, which may be withheld in the ASSOCIATION's sole discretion, no lease shall be for a period of less than one (1) month. Any person(s) occupying a HOME in the absence of the OWNER shall be deemed occupying the HOME pursuant to a lease, regardless of the presence or absence of consideration with respect to the occupancy. Notwithstanding the foregoing, an OWNER may permit members of his immediate family to occupy his HOME as a guest in his absence for periods of less than one (1) month, provided the BOARD is given prior written notice of such occupancy.

9.04 Alterations, Additions or Improvements Architectural control over the SUBJECT PROPERTY shall be vested in an Architectural Control Committee. No OWNER shall make, install, place or remove any building, fence, wall, pool, spa, landscaping or any other alteration, addition, improvement or change of any kind or nature whatsoever, to, in or upon any portion of the COMMON AREAS, the OWNER's UNIT, or the exterior of the OWNER's HOME, unless the OWNER first obtains the written consent of the Architectural Control Committee to such addition, alteration, improvement or change. In the event that the Architectural Control Committee does not restrict the modification in writing within a reasonable period of time, it shall be deemed approved. For so long as DECLARANT owns any UNITS, DECLARANT shall constitute and be the Architectural Control Committee. After DECLARANT no longer owns any UNIT on the SUBJECT PROPERTY, the ASSOCIATION shall appoint an Architectural Control Committee comprised of three (3) members, one of whom shall be a member of the BOARD and the remaining two (2) of whom shall be members of the ASSOCIATION. Any request by an OWNER for consent by the Architectural Control Committee to any addition, alteration, improvement or change shall be in writing and shall be accompanied by plans and specifications or other details as the Architectural Control Committee may deem reasonably necessary in connection with its determination to whether or not it will approve any such addition, alteration, improvement or change. The Architectural Control Committee's approval as to same shall not be unreasonably withheld, but may be withheld based upon aesthetic considerations. All additions, alterations, improvements or changes made by an OWNER shall be made in compliance with all laws, rules, ordinances and regulations of all governmental authorities having jurisdiction, and with any conditions imposed by the Architectural Control Committee with respect to design, structural integrity, aesthetic appeal, construction details or otherwise. An OWNER making or causing to be made any additions, alterations, improvements or changes agrees, and shall be deemed to have agreed, for such OWNER, and the OWNER's heirs, personal representatives, successors and assigns, as appropriate, to hold the Architectural Control Committee and all other OWNERS harmless from any liability or damage to the SUBJECT PROPERTY and expenses arising therefrom. Each OWNER shall be solely responsible for and shall maintain all exterior additions, alterations, improvements or changes made by the OWNER or his predecessor in a first class condition and in good working order as originally approved by the Architectural Control Committee. The foregoing shall not be deemed to prohibit repairs or replacements required to be made by the OWNER, provided such repairs or replacements are in conformity, including materials and colors, with that originally installed on the UNIT or last approved by the Architectural Control Committee.

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approved by the Architectural Control Committee.

9.05 Prohibited Improvement Without limiting the provisions of Paragraph 9.04, no OWNER shall permanently enclose any screened-in porch or patio, and no OWNER shall install any fence or wall, except for a uniform fence or wall approved by the Architectural Control Committee.

9.06 Outside Storage of Personal Property The personal property of the OWNER shall be stored inside the HOME or the fenced-in area of the OWNER's UNIT, and shall not be left outside of the fenced-in area overnight, with the exception of the OWNER's permitted motor vehicles.

9.07 No Temporary Buildings No out-buildings, portable buildings, temporary or accessory buildings or structures, storage buildings, or tents, shall be erected, constructed or located upon any UNIT for storage or otherwise, without the prior written consent of the Architectural Control Committee.

9.09 Garbage and Trash Each OWNER shall regularly pick up all garbage, trash, refuse or rubbish on the OWNER's UNIT. Garbage, trash, refuse or rubbish shall be placed at the curbside in the front of the UNIT in appropriate trash containers to be collected by the city at any time after 6:00 A.M. on the days of collection by the city. All containers must be removed from the curbside by 7:00 P.M. on the days of collection. At all other times, containers, dumpsters or garbage facilities shall be stored inside a HOME or fenced-in area and screened from view and kept in a clean and sanitary condition. No noxious or offensive odors shall be permitted.

9.10 Automobiles and Vehicles Only automobiles, small trucks and vans may be parked within the SUBJECT PROPERTY overnight. Other types of vehicles, recreational vehicles, campers, boats and trailers, may not be parked or stored overnight, or for more than four (4) hours in any day. No vehicle shall be parked overnight if commercial equipment is exposed in or upon the vehicle. The foregoing restriction shall not be deemed to prohibit the temporary parking of commercial vehicles making delivery to or from, or used in connection with providing services to, any HOME. No motor vehicle shall be stored within the SUBJECT PROPERTY which is not in operating condition, and no major repairs of motor vehicles are permitted within the SUBJECT PROPERTY. Motorcycles are not permitted, except with the prior written consent of the ASSOCIATION which may be withdrawn at any time, and any permitted motorcycles must be equipped with appropriate noise muffling equipment so that the operation of same do not create an unreasonable annoyance to the residents of the SUBJECT PROPERTY.

9.11 Animals and Pets Only common household pets are permitted within any HOME. No pet is permitted which creates an unreasonable source of noise or annoyance to other residents of the SUBJECT PROPERTY. No pet may be kept outside of any HOME in the absence of any resident of the HOME. Any dog must be carried or kept on a leash when outside of a HOME. Any resident will be required to immediately pick up any animal waste deposited by his pet on any portion of the SUBJECT PROPERTY. The ASSOCIATION may require any pet to be immediately and permanently removed from the SUBJECT PROPERTY due to a violation of these restrictions.

9.12 Air Conditioning Units Only central air conditioning units are permitted, and no window, wall or portable air conditioning units are permitted.

9.13 Clotheslines and Outside Clothes Drying No clothesline or clothespole shall be erected and no clothes-drying is permitted which is visible from the exterior of the UNIT.

9.14 Nuisances and Annoyances No nuisances shall be permitted within the SUBJECT PROPERTY, and no use or practice which is an unreasonable source of annoyance to the residents within the SUBJECT PROPERTY or which shall interfere with the peaceful possession and proper use of the SUBJECT PROPERTY by its residents shall be permitted. No offensive or unlawful action shall be permitted, and all laws, zoning ordinances and regulations of all controlling governmental authorities shall be complied with at all times by the OWNERS.

9.15 Outside Antennas No outside antennas are permitted.

9.16 Signs No signs are permitted which are visible from the exterior of any UNIT, except as permitted by the ASSOCIATION.

9.17 Window Treatments Window treatments shall consist of drapery, blinds, decorative panels, or other tasteful window covering, and no newspaper, aluminum foil, sheets or other temporary window treatments are permitted, except for periods not exceeding one (1) week after an OWNER or tenant first moves into a HOME or when permanent window treatments are being cleaned or repaired.

9.18 Fences Without limiting the provisions of Paragraph 9.04, any fence constructed upon a UNIT shall be of a uniform type, approved by the Architectural Control Committee, and shall be maintained in good condition in a uniform manner and color by the OWNER.

9.19 Landscaping Without limiting the provisions of Paragraph 9.04, the Architectural Control Committee may grant permission to an OWNER to install special landscaping on the OWNER's UNIT, which when installed shall be maintained by the OWNER in good condition at all times. If the OWNER fails to perform such maintenance, the ASSOCIATION will have the right to remove the landscaping and install sod at the OWNER's expense.

9.20 Surface Water Management The surface water management system for the SUBJECT PROPERTY shall be installed, operated and maintained in accordance with all permits and approvals issued by any controlling governmental authority. Furthermore, the surface water management system shall not be adversely interfered with, changed or altered, except pursuant to permits or approvals issued by the controlling governmental authority.

9.21 Maintenance Except for portions of the SUBJECT PROPERTY to be maintained by the ASSOCIATION as elsewhere provided, each OWNER shall maintain, in an attractive, first-class condition, his UNIT and his HOME and all other improvements existing upon his UNIT from time to time.

9.22 Waiver The ASSOCIATION shall have the right to waive the application of one or more of these restrictions, or to permit a deviation from these restrictions, as to any UNIT where, in the discretion of the ASSOCIATION, circumstances exist which justify such waiver or deviation. In the event of any such waiver or permitted deviation, or in the event any party fails to enforce any violation of these restrictions, such actions or inactions shall not be deemed to prohibit or restrict the right of the ASSOCIATION, or any other person having the right to enforce these restrictions, from insisting upon strict compliance with respect to all other UNITS, nor shall any such actions be deemed a waiver of any of the restrictions contained herein as same may be applied in the future.

9.23 Exceptions The foregoing use and maintenance restrictions shall not apply with respect to the customary and usual activities in connection with the development of the SUBJECT PROPERTY and other improvements within the SUBJECT PROPERTY, nor to the sale of HOMES by DECLARANT or any other person or entity within any portion of the SUBJECT PROPERTY. Specifically, and without limitation, DECLARANT and any person or entity developing or initially constructing any HOMES within any portion of the SUBJECT PROPERTY shall have the right to: (i) construct any BUILDING, HOMES or improvements within the SUBJECT PROPERTY, and make any additions, alterations, improvements or changes thereto; (ii) maintain customary and usual sales, general office and construction operations within the SUBJECT PROPERTY; (iii) place, erect or construct portable temporary or accessory buildings or structures within the SUBJECT PROPERTY for sales, construction, storage or other purposes; (iv) temporarily deposit, dump or accumulate materials, trash, refuse and rubbish in connection with the development or construction of any portion of the SUBJECT PROPERTY; (v) post, display, inscribe or affix to the exterior of a HOME or upon any portion of the SUBJECT PROPERTY "For Sale" or other reasonable signs used in the development or construction of any portion of the SUBJECT PROPERTY and for promotional purposes.

10. PARTY WALLS

10.01 Party Walls Each common wall shared by two (2) HOMES which divides the two (2) HOMES shall be a party wall for the perpetual benefit of and use by the OWNERS of the two (2) HOMES, including their respective heirs, assigns, successors and grantees.

10.02 Easement for Encroachment Each OWNER hereby grants to the OWNER of the adjacent HOME(S) an easement for the continuance of any encroachment of the party wall on the adjoining HOME existing as a result of the construction of the party wall, or which may come into existence thereafter as a result of settling or shifting of the party wall, or as a result of repair or reconstruction of the party wall.

10.03 Repair and Maintenance Except as otherwise provided herein, each OWNER shall bear the responsibility to repair and maintain the unfinished surface of the exterior portion of the party wall which is located within his HOME. As to the structural and interior portions of the party wall, each OWNER shall share equally in the cost of the repair, maintenance and reconstruction of same. However, if any OWNER's negligence or willful misconduct causes damage to or destruction of a party wall, such negligent or willfully mischievous OWNER shall bear the entire cost of repairing or reconstructing the party wall. Any INSTITUTIONAL LENDER shall have the full right, at its option, to exercise the rights of its mortgagor as an OWNER hereunder and, in addition, the right to add to the outstanding balance of such mortgage any amounts paid by the mortgagee for repairs or reconstruction and not reimbursed to the mortgagee by the OWNER.